Amendment 1 — Cure and Cover

Document control code: AMD-REC-017-A1. Contract reference: REC-2024-017.

This Amendment modifies only exception cure, buyer cover, and associated damage provisions. All unmodified confirmation terms remain in force.

SECTION 1 — PRECEDENCE

When fully executed, this Amendment controls over inconsistent terms in the base confirmation.

SECTION 2 — SELLER CURE

For a noticed deficiency, Seller may elect substitute delivery. Election and completed substitute tender must be received no later than June 6, 2025 at 17:00 EDT.

A substitute is tested independently for product, vintage, qualification effective date, exact serial identity, buyer custody, and uniqueness. An election does not guarantee acceptance.

SECTION 3 — BUYER COVER

After timely seller cure is exhausted, Buyer may cover only the remaining deficient quantity through the evidence cutoff.

Recoverable cover damages equal covered quantity multiplied by the positive difference between executed cover unit price and USD 18.00 contract unit price. Unsupported quotes do not count as cover.

Any deficiency not cured or covered remains open for compliance follow-up.

SECTION 4 — EVIDENCE

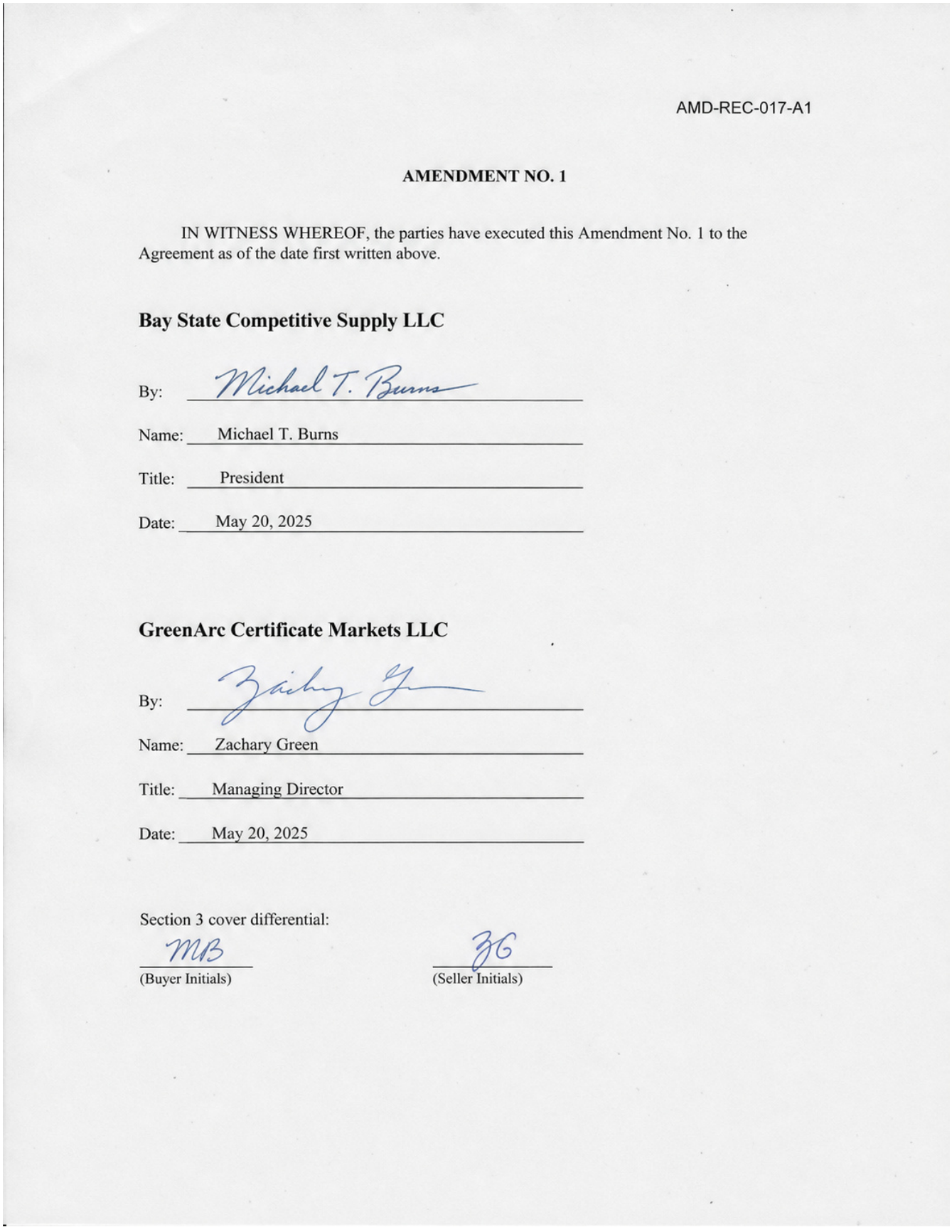
A cover trade must be executed and must identify product, quantity, price, trade identity, and execution time. Registry status is tested at the review cutoff.

SECTION 5 — NOTICE

Existing dispute mechanics remain unchanged. Commercial clocks and regulatory filing dates are independent.

Execution Page

Controlled image follows. Text outside the image does not attest execution completeness.



AMD-REC-017-A1

AMENDMENT NO. 1

IN WITNESS WHEREOF, the parties have executed this Amendment No. 1 to the Agreement as of the date first written above.

Bay State Competitive Supply LLC

By: Michael T. Burns

Name: Michael T. Burns

Title: President

Date: May 20, 2025

GreenArc Certificate Markets LLC

By: Zachary Green

Name: Zachary Green

Title: Managing Director

Date: May 20, 2025

Section 3 cover differential:

MB
(Buyer Initials)

ZG
(Seller Initials)

Document-control reverse view.

